

PROPOSED
HOUSE OF REPRESENTATIVES AMENDMENTS TO H.B. 2796
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

~~[GREEN STRIKEOUT IN BRACKETS]~~ indicates new text removed from statute or previously enacted session law.

~~[Green strikeout in brackets]~~ indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

~~<<Green strikeout in carets>>~~ indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 <<Section 1. Section 20-1384, Arizona Revised Statutes, is amended
3 to read:

4 20-1384. Short-term limited duration insurance; notice;
5 definitions

6 A. All policies or certificates [THAT ARE] issued, delivered or
7 renewed in this state for short-term limited duration insurance shall
8 display on the policy's fact page and in any application materials
9 provided in connection with enrollment in such coverage the following
10 federal disclosure in at least fourteen-point type:

11 Notice

12 This coverage is not required to comply with certain federal
13 market requirements for health insurance, principally those
14 contained in the affordable care act. Be sure to check your
15 policy carefully to make sure you are aware of any exclusions
16 or limitations regarding coverage of preexisting conditions or
17 health benefits (such as hospitalization, emergency services,
18 maternity care, preventive care, prescription drugs and mental
19 health and substance use disorder services). Your policy
20 might also have lifetime or annual dollar limits on health
21 benefits, or both. If this coverage expires or you lose
22 eligibility for this coverage, you might have to wait until an
23 open enrollment period to get other health insurance coverage.

24 B. A health care insurer shall provide notice to the insured before
25 expiration that the policy needs to be renewed or is expiring.

26 C. For the purposes of this section:

27 1. "Health care insurer" has the same meaning prescribed in section
28 20-1379.

1 2. "Short-term limited duration insurance" means health insurance
2 coverage that is offered by a health care insurer, that is not subject to
3 state health coverage mandates in this title, that has an expiration date
4 specified in the contract that is less than twelve months [OR THE MAXIMUM
5 DURATION AUTHORIZED UNDER 26 CODE OF FEDERAL REGULATIONS SECTION
6 54.9801-2, WHICHEVER IS GREATER,] after the original effective date of the
7 contract and, taking into account renewals or extensions, that has a
8 duration of not longer than thirty-six months [OR THE MAXIMUM DURATION
9 AUTHORIZED UNDER 26 CODE OF FEDERAL REGULATIONS SECTION 54.9801-2,
10 WHICHEVER IS GREATER].>>

11 Sec. 2. Title 36, chapter 29, article 1, Arizona Revised Statutes,
12 is amended by adding sections 36-2903.18 and 36-2903.19, to read:

13 36-2903.18. Data matching agreements; review of member
14 eligibility information; waiver requests

15 A. THE ADMINISTRATION SHALL ENTER INTO A DATA MATCHING AGREEMENT
16 WITH THE DEPARTMENT OF REVENUE TO IDENTIFY MEMBERS WHO HAVE LOTTERY OR
17 GAMBLING WINNINGS OF \$3,000 OR MORE. THE ADMINISTRATION SHALL REVIEW THIS
18 INFORMATION ON AT LEAST A MONTHLY BASIS. IF A MEMBER FAILS TO DISCLOSE
19 WINNINGS OF \$3,000 OR MORE AND IS IDENTIFIED THROUGH THE DATABASE MATCH,
20 THE ADMINISTRATION SHALL CONSIDER THE MEMBER'S FAILURE TO DISCLOSE THE
21 INFORMATION A VIOLATION OF THE SYSTEM'S TERMS OF ELIGIBILITY.

22 B. ON AT LEAST A MONTHLY BASIS, THE ADMINISTRATION SHALL RECEIVE
23 AND REVIEW DEATH RECORDS INFORMATION FROM THE DEPARTMENT OF HEALTH
24 SERVICES CONCERNING MEMBERS AND SHALL ADJUST SYSTEM ELIGIBILITY
25 ACCORDINGLY.

26 C. ON AT LEAST A QUARTERLY BASIS, THE ADMINISTRATION SHALL RECEIVE
27 AND REVIEW INFORMATION FROM THE DEPARTMENT OF ECONOMIC SECURITY CONCERNING
28 MEMBERS THAT INDICATES A CHANGE IN CIRCUMSTANCES THAT MAY AFFECT
29 ELIGIBILITY, INCLUDING CHANGES TO UNEMPLOYMENT BENEFITS, EMPLOYMENT STATUS
30 OR WAGES.

D. ON AT LEAST A MONTHLY BASIS, THE ADMINISTRATION SHALL REVIEW INFORMATION CONCERNING MEMBERS THAT INDICATES A CHANGE IN CIRCUMSTANCES THAT MAY AFFECT ELIGIBILITY, INCLUDING POTENTIAL CHANGES IN RESIDENCY AS IDENTIFIED BY OUT-OF-STATE ELECTRONIC BENEFIT TRANSFER CARD TRANSACTIONS.

35 E. ON AT LEAST A QUARTERLY BASIS, THE ADMINISTRATION SHALL RECEIVE
36 AND REVIEW INFORMATION FROM THE DEPARTMENT OF REVENUE CONCERNING MEMBERS
37 THAT INDICATES A CHANGE IN CIRCUMSTANCES THAT MAY AFFECT ELIGIBILITY FOR
38 THE SYSTEM, INCLUDING POTENTIAL CHANGES IN INCOME, WAGES OR RESIDENCY AS
39 IDENTIFIED BY TAX RECORDS.

F. UNLESS REQUIRED BY FEDERAL LAW, THE ADMINISTRATION MAY NOT ACCEPT SELF-ATTESTATION OF INCOME, RESIDENCY, AGE, HOUSEHOLD COMPOSITION, CARETAKER OR RELATIVE STATUS OR RECEIPT OF OTHER HEALTH INSURANCE COVERAGE WITHOUT INDEPENDENT VERIFICATION BEFORE ENROLLMENT. THE ADMINISTRATION MAY NOT REQUEST AUTHORITY TO WAIVE OR DECLINE TO PERIODICALLY CHECK ANY AVAILABLE INCOME-RELATED DATA SOURCES TO VERIFY ELIGIBILITY.

46 G. THE ADMINISTRATION MAY NOT ACCEPT ELIGIBILITY DETERMINATIONS FOR
47 THE SYSTEM FROM AN EXCHANGE ESTABLISHED PURSUANT TO 42 UNITED STATES CODE

1 SECTION 18041(c). THE ADMINISTRATION MAY ACCEPT ASSESSMENTS FROM AN
2 EXCHANGE ESTABLISHED PURSUANT TO 42 UNITED STATES CODE SECTION 18041(c)
3 BUT SHALL INDEPENDENTLY VERIFY ELIGIBILITY AND MAKE ELIGIBILITY
4 DETERMINATIONS.

5 H. IF THE ADMINISTRATION RECEIVES INFORMATION CONCERNING A MEMBER
6 THAT INDICATES A CHANGE IN THE MEMBER'S CIRCUMSTANCES THAT MAY AFFECT
7 ELIGIBILITY, THE ADMINISTRATION SHALL REVIEW THE MEMBER'S ELIGIBILITY.

8 I. THE ADMINISTRATION MAY EXECUTE A MEMORANDUM OF UNDERSTANDING
9 WITH ANY OTHER DEPARTMENT OF THIS STATE FOR INFORMATION REQUIRED TO BE
10 SHARED PURSUANT TO THIS SECTION. THE ADMINISTRATION MAY CONTRACT WITH ONE
11 OR MORE INDEPENDENT VENDORS TO PROVIDE ADDITIONAL DATA OR INFORMATION THAT
12 MAY INDICATE A CHANGE IN CIRCUMSTANCES AND AFFECT AN INDIVIDUAL'S
13 ELIGIBILITY.

14 J. ON OR BEFORE APRIL 1, 2027, THE ADMINISTRATION SHALL SUBMIT TO
15 THE CENTERS FOR MEDICARE AND MEDICAID SERVICES ANY WAIVER REQUESTS
16 NECESSARY TO IMPLEMENT THIS SECTION.

17 36-2903.19. Presumptive eligibility; limits; standards;
18 notification; training

19 A. THE ADMINISTRATION SHALL REQUEST APPROVAL FROM THE CENTERS FOR
20 MEDICARE AND MEDICAID SERVICES FOR A SECTION 1115 WAIVER TO ALLOW THE
21 ADMINISTRATION TO ELIMINATE MANDATORY HOSPITAL PRESUMPTIVE ELIGIBILITY AND
22 RESTRICT PRESUMPTIVE ELIGIBILITY DETERMINATIONS TO CHILDREN AND PREGNANT
23 WOMEN ELIGIBILITY GROUPS. IF APPROVAL FOR THE SECTION 1115 WAIVER IS
24 DENIED, THE ADMINISTRATION SHALL RESUBMIT A SUBSEQUENT REQUEST FOR
25 APPROVAL WITHIN TWELVE MONTHS AFTER EACH DENIAL.

26 B. UNLESS REQUIRED BY FEDERAL LAW, THE ADMINISTRATION MAY NOT
27 DESIGNATE ITSELF AS A QUALIFIED HEALTH ENTITY FOR THE PURPOSE OF MAKING
28 PRESUMPTIVE ELIGIBILITY DETERMINATIONS OR FOR ANY PURPOSE NOT EXPRESSLY
29 AUTHORIZED BY STATE LAW.

30 C. WHEN MAKING PRESUMPTIVE ELIGIBILITY DETERMINATIONS, A QUALIFIED
31 HOSPITAL SHALL DO ALL OF THE FOLLOWING:

32 1. NOTIFY THE ADMINISTRATION OF EACH PRESUMPTIVE ELIGIBILITY
33 DETERMINATION WITHIN FIVE WORKING DAYS AFTER THE DATE THE DETERMINATION IS
34 MADE.

35 2. ASSIST INDIVIDUALS WHO ARE DETERMINED PRESUMPTIVELY ELIGIBLE
36 UNDER THE SYSTEM WITH COMPLETING AND SUBMITTING A FULL APPLICATION FOR
37 SYSTEM ELIGIBILITY.

38 3. NOTIFY EACH APPLICANT IN WRITING AND ON ALL RELEVANT FORMS WITH
39 PLAIN LANGUAGE AND LARGE PRINT THAT IF THE APPLICANT DOES NOT FILE A FULL
40 APPLICATION FOR SYSTEM ELIGIBILITY WITH THE ADMINISTRATION BEFORE THE LAST
41 DAY OF THE FOLLOWING MONTH, PRESUMPTIVE ELIGIBILITY COVERAGE WILL END ON
42 THE LAST DAY OF THE FOLLOWING MONTH.

43 4. NOTIFY EACH APPLICANT THAT IF THE APPLICANT FILES A FULL
44 APPLICATION FOR SYSTEM ELIGIBILITY WITH THE ADMINISTRATION BEFORE THE LAST
45 DAY OF THE FOLLOWING MONTH, PRESUMPTIVE ELIGIBILITY COVERAGE WILL CONTINUE
46 UNTIL AN ELIGIBILITY DETERMINATION IS MADE ON THE APPLICATION THAT IS
47 FILED.

1 D. THE ADMINISTRATION SHALL APPLY THE FOLLOWING STANDARDS TO
2 ESTABLISH AND ENSURE THAT ACCURATE PRESUMPTIVE ELIGIBILITY DETERMINATIONS
3 ARE MADE BY EACH QUALIFIED HOSPITAL:

4 1. WHETHER THE QUALIFIED HOSPITAL SUBMITTED TO THE ADMINISTRATION
5 THE PRESUMPTIVE ELIGIBILITY CARD WITHIN FIVE WORKING DAYS AFTER THE
6 DETERMINATION DATE.

7 2. WHETHER A FULL APPLICATION FOR SYSTEM ELIGIBILITY WAS RECEIVED
8 BY THE ADMINISTRATION BEFORE THE EXPIRATION OF THE PRESUMPTIVE ELIGIBILITY
9 PERIOD.

10 3. IF A FULL APPLICATION WAS RECEIVED BY THE ADMINISTRATION,
11 WHETHER THE INDIVIDUAL WAS FOUND TO BE ELIGIBLE UNDER THE SYSTEM.

12 E. IF THE ADMINISTRATION DETERMINES THAT A QUALIFIED HOSPITAL FAILS
13 TO MEET ANY OF THE STANDARDS ESTABLISHED UNDER SUBSECTION D OF THIS
14 SECTION FOR ANY PRESUMPTIVE ELIGIBILITY DETERMINATION THAT THE QUALIFIED
15 HOSPITAL MADE, THE ADMINISTRATION SHALL NOTIFY THE QUALIFIED HOSPITAL IN
16 WRITING WITHIN FIVE DAYS AFTER THE DETERMINATION. THE NOTICE SHALL
17 INCLUDE:

18 1. FOR THE FIRST VIOLATION, BOTH OF THE FOLLOWING:

19 (a) A DESCRIPTION OF THE STANDARD THAT WAS NOT MET AND AN
20 EXPLANATION OF WHY IT WAS NOT MET.

21 (b) CONFIRMATION THAT A SECOND FINDING WILL REQUIRE THAT ALL
22 APPLICABLE HOSPITAL STAFF PARTICIPATE IN MANDATORY TRAINING BY THE
23 ADMINISTRATION ON HOSPITAL PRESUMPTIVE ELIGIBILITY RULES.

24 2. FOR THE SECOND VIOLATION, ALL OF THE FOLLOWING:

25 (a) A DESCRIPTION OF THE STANDARD THAT WAS NOT MET AND AN
26 EXPLANATION OF WHY IT WAS NOT MET.

27 (b) CONFIRMATION THAT ALL APPLICABLE HOSPITAL STAFF WILL BE
28 REQUIRED TO PARTICIPATE IN MANDATORY TRAINING BY THE ADMINISTRATION ON
29 HOSPITAL PRESUMPTIVE ELIGIBILITY RULES, INCLUDING THE DATE, TIME AND
30 LOCATION OF THE TRAINING AS DETERMINED BY THE ADMINISTRATION.

31 (c) A DESCRIPTION OF AVAILABLE APPEALS PROCEDURES BY WHICH A
32 QUALIFIED HOSPITAL MAY DISPUTE THE FINDING AND REMOVE THE FINDING FROM THE
33 QUALIFIED HOSPITAL'S RECORD BY PROVIDING CLEAR AND CONVINCING EVIDENCE
34 THAT THE STANDARD WAS MET.

35 (d) CONFIRMATION THAT IF THE QUALIFIED HOSPITAL SUBSEQUENTLY FAILS
36 TO MEET ANY STANDARD FOR PRESUMPTIVE ELIGIBILITY FOR ANY DETERMINATION,
37 THE QUALIFIED HOSPITAL WILL NO LONGER BE QUALIFIED TO MAKE PRESUMPTIVE
38 ELIGIBILITY DETERMINATIONS UNDER THE SYSTEM.

39 3. FOR THE THIRD VIOLATION, ALL OF THE FOLLOWING:

40 (a) A DESCRIPTION OF THE STANDARD THAT WAS NOT MET AND AN
41 EXPLANATION OF WHY IT WAS NOT MET.

42 (b) A DESCRIPTION OF AVAILABLE APPEALS PROCEDURES BY WHICH A
43 QUALIFIED HOSPITAL MAY DISPUTE THE FINDING AND REMOVE THE FINDING FROM THE
44 QUALIFIED HOSPITAL'S RECORD BY PROVIDING CLEAR AND CONVINCING EVIDENCE
45 THAT THE STANDARD WAS MET.

1 (c) CONFIRMATION THAT, EFFECTIVE IMMEDIATELY, THE QUALIFIED
2 HOSPITAL IS NO LONGER QUALIFIED TO MAKE PRESUMPTIVE ELIGIBILITY
3 DETERMINATIONS UNDER THE SYSTEM.

4 Sec. 3. Effective date

5 This act is effective from and after December 31, 2026.

6 Enroll and engross to conform

7 Amend title to conform

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